

Plaintiff Dongxiao Yue moves that defendant Trigmax Solutions LLC be compelled to provide responses without objection to Special Interrogatories 1-16 and Requests for Production of Documents 1-14. No opposition has been filed.

Plaintiff establishes that the requests were served, and Trigmax did not provide a timely response. Plaintiff followed up with an email request to counsel for Trigmax, but he expressly declined to provide a response.

The basis for the non-response arises from the previous appeal. Another judge previously assigned to this case granted a motion to dismiss for failure to bring the case to trial within 5 years. Plaintiff appealed, and the Court of Appeal reversed. Trigmax's counsel maintained that because discovery had been closed before the initial trial date, the reversal and issuance of a remittitur did not reopen discovery. Thus, the discovery was improper until the trial court issued an order reopening discovery. The parties debated this issue in their electronic mail, each relying on *Beverly Hospital v. Superior Ct.* (1993) 19 Cal.App.4th 1289, 1291, in which the court held that "a mistrial, new trial or reversal of the judgment on appeal automatically restarts the time limitations on discovery." While other Courts of Appeal disagreed, the Supreme Court concluded that *Beverly Hospital* is correct in *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 247, reversing an appellate court conclusion that no additional discovery for the purposes of the new trial is permitted without leave of the trial court. In this Court's view, this means that leave of court or a "reopening" of discovery was not required to serve further discovery.

The motion to compel further answers is granted. Defendant Trigmax Solutions is to provide answers, without objection, within 30 days of notice of this ruling.

Plaintiff's request for sanctions (the \$60 filing fee), is granted.

13. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

Before the Court is a motion by plaintiff Silvio Garaventa, Jr., for payment of expenses, including attorneys' fees, pursuant to Corporations Code section 2000. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 19, 2026**, for submission of supplemental papers, as set forth below.

Background

Plaintiff Silvio Garaventa filed a complaint initiating this action in 2019. The action arises out of business disputes between Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that at that time, Garaventa and Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each a director of Pine Hollow. (FAC ¶¶ 1, 2.) Garaventa alleges he and Azari also each held 50 percent membership

interests in the limited liability company defendant AGL Enterprises, LLC. (FAC ¶¶ 1, 2, 4.)

Among the causes of action alleged by Garaventa was a cause of action for involuntary dissolution of Pine Hollow pursuant to Corporations Code section 1800. Azari notified the Court and counsel of his election to exercise his right to purchase Garaventa's 50% ownership interest in AGL under the AGL operating agreement and in Pine Hollow pursuant to Corporations Code section 2000(a). Azari made a motion to compel arbitration of the causes of action in the FAC related to AGL and to stay the action. The Court granted the motion to compel arbitration as to the AGL-related claims and stayed the action as to the claims related to AGL, but not the causes of action related to Pine Hollow. (Order filed 7/16/2020.)

The Court also granted Garaventa's motion to appoint appraisers in part to the extent it sought the appointment of appraisers to value Pine Hollow in connection with Azari's Corporations Code section 2000 election. (7/16/2020 Order.) The Court subsequently issued its Order Pursuant to Corporations Code Section 2000 filed August 18, 2020 based on Azari's election to purchase Garaventa's 50% ownership interest in Pine Hollow. In that order, Azari was ordered to post a bond of \$250,000, and the Court appointed three appraisers to value Pine Hollow, among other things. (8/18/2020 Order.)

On May 17, 2022, after several prior hearings addressing the status of the appraisals of Pine Hollow, the Court stayed the remainder of the action, in particular regarding the valuation of Pine Hollow, pending the completion of the AGL arbitration and the valuation of AGL through that proceeding. (5/17/2022 3rd Interim Order After Hearing.) At a status hearing on July 21, 2023, the Court's minute order indicates Plaintiff asked the Court to lift the stay to allow the valuation of Pine Hollow to proceed. (7/21/2023 Min. Order.) The stay remained in effect, and a trial setting conference was set for September 27, 2023. (7/21/2023 Min. Order.)

The Court advised the parties at the September 27, 2023 hearing that the case was being reassigned to Department 12 before Judge Treat and set a further hearing before Judge Treat on January 29, 2024. The minute order on the January 29, 2024 hearing reflects the AGL arbitration award and valuation had just been issued. (1/29/2024 Min. Order.) The Court set and held two continued case management conferences as the parties indicated they were attempting to reach a stipulation on the bifurcation of the Pine Hollow valuation determination and the other claims in the FAC related to Pine Hollow. On December 12, 2024, the Court granted the motion to bifurcate the Pine Hollow valuation from other issues in the case. (12/12/2024 Order.) A further case management conference was held on January 14, 2025 after the case was reassigned to Department 39, before Judge Weil.

Azari attempted to withdraw his buy-out election under Corporations Code section 2000 in Azari's Status Report re: Section 2000 Special Proceeding filed February 13, 2025. At the Court's request, the parties provided supplemental briefing on whether Azari had the right to withdraw the election and on the appraisals of Pine Hollow prepared by the three appraisers. On March 25, 2025, Azari submitted a \$250,000 cashier's check to the Court as a cash bond, the bond that had been ordered posted in the August 18, 2020 Order.

At the March 28, 2025 hearing, the Court rejected Azari's attempt to withdraw his buy-out election and took the matter under submission after the parties' argument on the valuation issue. After taking the matter under submission, the Court issued its Order After Hearing and Decree Under Corporations Code § 2000 ("Section 2000 Decree") which was filed May 2, 2025. (5/2/2025 Section

2000 Decree.)

Section 2000 Decree determined the valuation of Pine Hollow and set a 60-day deadline for Azari to complete the buy-out of Garaventa's ownership pursuant to Corporations Code section 2000(c). (5/2/2025 Section 2000 Decree.) There is no dispute that Azari failed to complete the buy-out of Garaventa's interest in Pine Hollow by the Court-ordered deadline.

On August 13, 2025, after the deadline for the buy-out passed, Garaventa filed his motion for payment of expenses under Corporations Code section 2000(c). Garaventa seeks judgment for attorneys' fees and costs of \$184,778.94, including \$148,781.25 in attorneys' fees, \$14,247.69 in costs, and \$21,750 for one-half the amount Pine Hollow paid for the appraisals valuing the corporation. (MPA ISO Mot. p. 13, ll. 10-20.) Azari opposes the motion.

Law Applicable to the Determination of the Motion

Corporations Code section 2000 in regard to an award of expenses provides:

(b) If the purchasing parties (1) elect to purchase the shares owned by the moving parties, and (2) are unable to agree with the moving parties upon the fair value of those shares, and (3) give bond with sufficient security to pay the estimated reasonable expenses (including attorneys' fees) of the moving parties if those expenses are recoverable under subdivision (c), the court . . . shall stay the winding up and dissolution proceeding and shall proceed to ascertain and fix the fair value of the shares owned by the moving parties.

(c) The court shall appoint three disinterested appraisers The order shall prescribe the time and manner of producing evidence, if evidence is required. . . . The court shall enter a decree, which shall provide in the alternative for winding up and dissolution of the corporation unless payment is made for the shares within the time specified by the decree. If the purchasing parties do not make payment for the shares within the time specified, judgment shall be entered against them and the surety or sureties on the bond for the amount of the expenses (including attorneys' fees) of the moving parties. . . .

(Corp. Code § 2000(b) and (c) [emphasis added].)

With regard to the standards for the Court awarding attorneys' fees and costs, the Court in *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315 explained that courts assess attorneys' fees generally under a "lodestar" figure based on a compilation of the time spent by counsel multiplied by the reasonable hourly compensation for each attorney who rendered services. (*Id.* at 1321 ["The court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. [Citations omitted.]"].) "[A]scertaining the fee amount is left to the trial court's sound discretion. [Citations omitted.] Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts. [Citations

omitted.]" (*Id.*)

Christian Research Institute does not preclude block billing or require denial of attorneys' fees solely because the fee records contain block billing. It is a factor the Court considers in the Court finding the services are compensable. (*Christian Research Institute, supra*, 165 Cal.App.4th at 1325.) (*See also Bell v. Vista Unified School District* (2000) 82 Cal.App.4th 672, 689.)

Analysis

Azari argues Garaventa's motion has an inadequate evidentiary basis upon which to grant him either attorneys' fees or costs and exceed the scope of expenses to which Garaventa is entitled under Corporations Code section 2000(c). Azari does not dispute that the rates charged by Plaintiff's counsel are reasonable. Azari also does not contend that the time actually expended by the professionals representing Garaventa was excessive for any of the tasks performed. Azari contests the fees requested as he contends they exceed the scope of services compensable under Corporations Code section 2000(c) and are not related to the appraisal of Pine Hollow. He also objects to the time entries as too vague to discern whether the work relates to the Pine Hollow appraisal.

The motion is supported by the Bowles Declaration which attaches billing summaries as Exhibit A and a summary of expenses as Exhibit B. As to one component of the lodestar calculation, the billing rates charged by the attorneys performing services, the Bowles Declaration provides the hourly rates of three attorneys, Bowles (\$425), Ms. Tomp (\$285), and Cheryl Noll beginning in October 2022 (\$385). Bowles explains why the rates are reasonable given (a) the nature of the services rendered and the issues involved, (b) the experience of the attorneys rendering the services, and (c) the fact that the rates were those in effect when the attorneys began work on the case and have not been increased since then. (Bowles Decl. ¶¶ 25-28.)

A. Nature of Expenses, Including Attorneys' Fees, Recoverable Under Corporations Code Section 2000(c)

There is limited case law interpreting Corporations Code section 2000 generally, and specifically with regard to the expenses and attorneys' fees that may be awarded if the "purchasing parties" fail to complete the share buy-out. The statute itself, however, provides guidance on the expenses and attorneys' fees which should be awarded. In context and based on the statutory language, the award should be for expenses and attorneys' fees related to the Corporations Code section 2000 special proceeding for appraising the value of the shares of the corporation for purposes of the buy-out election where appraisers must be appointed by the Court because the parties cannot agree on the share valuation. (Corp. Code § 2000(b) and (c).)

Both parties cite *Go v. Pacific Health Services, Inc.* (2009) 179 Cal.App.4th 522. The issues presented on appeal in that case were (a) whether the trial court erred in valuing the corporation and undervalued the plaintiff's shares, and (b) whether the trial court's decree erroneously directing the immediate wind up of the corporation if the purchasing defendants failed to complete the buyout within the time deadline set in the decree. (*Id.* at 525-526.) The Court of Appeal affirmed the trial court on both issues, but the published portion of the decision addressed only the propriety of the decree directing the immediate wind up of the entity. In concluding that the decree for the immediate wind up was appropriate, the Court explained that Corporations Code section 2000 if invoked begins a special proceeding that supplants the cause of action for involuntary dissolution

under Corporations Code section 1800. (*Id.* at 530.)

In affirming the trial court's decree, the Court described the process under Corporations Code section 2000(c), quoting from *Trahan v. Trahan* (2002) 99 Cal.App.4th 62, in which the Court explained that if the purchasing parties chose not to purchase the shares and permit the dissolution of the corporation to proceed, then the purchasing parties "only liability would be to pay the expenses (including attorneys' fees) incurred by the moving parties in the appraisal process. [Citation omitted.]" (*Trahan, supra*, 99 Cal.App.4th at 75, quoted at *Go, supra*, 179 Cal.App.4th at 531.) The Court in *Go* later reiterated this interpretation of the expense liability imposed by Corporations Code section 2000(c) in rejecting the defendants' position that they should have been allowed to contest the involuntary dissolution of the corporation under Corporations Code section 1800 after they invoked the buy-out election procedure and then decided not to buy the shares. (*Id.* at 531-532 ["If [dissolution] were not the inevitable outcome, then all majority shareholders facing an action for involuntary dissolution would invoke section 2000 if only for the purpose of delay, with nothing to lose other than the expense of the appraisal and attorneys' fees, knowing they could eventually litigate the action for involuntary dissolution on its merits." (Emphasis added.)].)

B. Azari's Liability Not Eliminated by Attempt to Withdraw His Buyout Election

As Azari concedes, the Court has previously considered the parties' extensive briefing on his right to withdraw his Corporations Code section 2000(a) buyout election roughly five years after the election was made. In making the election, the special proceeding of Corporations Code section 2000 supplanted Garaventa's involuntary judicial dissolution cause of action under Corporations Code section 1800. (*Go, supra*, 179 Cal.App.4th at 531-532; *Ontiveros v. Constable* (2018) 27 Cal.App.5th 259, 267.) The Court will not revisit its prior ruling on the withdrawal, and Azari's attempt to withdraw from his election under Corporations Code section 2000(a) provides no basis for the Court to deny the statutorily mandated payment of Plaintiff's expenses, including attorneys' fees, under Corporations Code section 2000(c).

C. Scope of Compensable Work in This Case

The Court rejects Azari's position that the only tasks that are properly charged or compensable "would be gathering and transmitting documents to the appraiser and reviewing appraisals – not motion practice, letters to the Court, or other court filings." (Opp. p. 10, ll. 12-15.) For example, Azari apparently contends that attorneys' fees and expenses incurred in connection with Garaventa's motion to appoint the appraisers for the Corporations Code section 2000 valuation should not be compensated under Corporations Code section 2000(c), based on Exhibit 1 to Azari's Opposition. The Court finds that services related to that motion pursuant to which the appraisers who valued Pine Hollow were appointed by the Court and given direction for their work are clearly within the scope of compensable expenses under Corporations Code section 2000(c).

As the statute and these case authorities explain, the "appraisal" under Corporations Code section 200(b) is a special proceeding, an alternative legal proceeding to involuntary dissolution. It requires Court hearings and Court action, with an opportunity for the parties to participate in the process by participating in hearings, presenting argument, and filing legal briefs to address issues that arise as part of the Court's ultimate determination of the valuation of the business based on the appraisals presented. The history of this case, with numerous hearings and pleadings filed by the parties in the

course of the Court's appointment of the appraisers to its Section 2000 Decree shows the "appraisal process" is not merely engaging three appraisers. The expenses to which Garaventa is entitled under Corporations Code section 2000(c) are not limited to those related to obtaining the three appraisals.

As the background summary above sets forth, the Court held a number of hearings regarding the status and timing of the Pine Hollow appraisal process, whether the action should be stayed based on the bearing the AGL arbitration might have on the Pine Hollow valuation, whether the Corporations Code section 2000 special proceeding to value Pine Hollow should be bifurcated from Plaintiff's other claims and causes of action related to Pine Hollow, whether Azari could withdraw his Corporations Code section 2000 buyout election, and what appraisal should be adopted as the valuation of Pine Hollow. The Court considers services involving or related to those activities to be reasonably related to the special proceeding for the appraisal of Pine Hollow and compensable under Corporations Code section 2000(c).

Azari argues Garaventa is seeking to recover "all expenses incurred in the action" with limited exception for the "excluded categories" described in the motion and the Bowles Declaration. (Opp. p. 11; Bowles Decl. ¶ 24.) Bowles declares that Garaventa has incurred over \$470,000 in attorneys' fees in the case and over \$85,000 in costs (Exh. B shows over \$83,000 in expenses through June 2025). (Bowles Decl. ¶ 24.) The expenses requested in the motion are considerably less than the total incurred, less than one-third of the total.

The Court also disagrees with Azari that no attorneys' fees or expenses after May 2, 2025 when the Court issued the Section 2000 Decree are expenses incurred in the appraisal process for purposes of Corporations Code section 2000. The appraisal process under the statute continued after that date while Azari made his determination whether to complete the buy-out and then when the consequences of Azari's failure to buy out Garaventa's shares continued the Corporations Code section 2000 process by causing the dissolution of Pine Hollow. The Court notes the fees requested in the motion end with time entries on June 25, 2025, while the next steps in the Corporations Code section 2000 proceeded.

On the other hand, the Court agrees with Azari that the time entries in Exhibit A to the Bowles Declaration appear to include some services that do not relate to the special proceeding for the appraisal of Pine Hollow. The Court agrees that activities that are related to the prosecution of the claims against AGL or against Azari for alleged wrongdoing in his management of Pine Hollow are not reasonably related to the valuation special proceeding.

Plaintiff's evidence, either in the time entries or narrative in the Bowles Declaration, does not connect counsel's work on any "discovery" to the Pine Hollow special proceeding and appraisal process so as to make those time entries compensable under Corporations Code section 2000(c). (See, e.g., time entries on 4/21/2020, 4/22/2020 (by LMT), 5/1/2020, 5/4/2020, 5/20/2020, 5/22/2020, 5/23/2020, 6/19/2020, 6/26/2020.) The Court is not aware of any discovery involved in or related to the appraisal process for Pine Hollow. If the supplemental filing and supplemental Bowles Declaration requested by the Court can demonstrate that discovery was conducted in relation to the appraisal of Pine Hollow and the discovery entries are actually connected to the appraisal process, the Court will re-evaluate the entries with that supplemental evidence.

In addition, there are time entries related to the initial motion for appointment of a receiver and

evaluation of the AGL operating agreement which the Court does not consider to be related to the special valuation proceeding for Pine Hollow. (*See, e.g.*, Bowles time entries on 11/1/2019, 11/4/2019, 11/5/2019, 11/7/2019.) The Court requests that Garaventa carve out time and fees for services related to the initial receiver motion filed by Azari, discovery (not merely the example entries cited above, but subject to Garaventa being able to demonstrate their connection to the appraisal process), any AGL-related services not already excluded from the Exhibit A time entry summary, and provide the Court in his supplemental filing a revised billing compilation, summary, and calculation of the attorneys' fees requested excluding those services.

D. Other Issues Regarding Plaintiff's Time Records

1. Lack of Time Keeper Hours Summaries

There is no summary of the number of hours of services for which compensation is requested and the applicable billing rate, either for all attorneys (yielding a blended rate) or by each time keeper, month-by-month, year-by-year, or in total. This information would be helpful to the Court in assessing the reasonableness of the attorneys' fees requested, given the lengthy time period covered (roughly 56 months) and the more than 110 pages of time entries filed. The manner in which the time entries are provided, with no month-end summaries or summary of hours, billing rate, and fees charged even at the end of the lengthy time entries, does not allow the Court to readily assess the reasonableness of the fees requested under a lodestar calculation based on the number of hours spent times the applicable billing rate. (*Christian Research Institute, supra*, 165 Cal.App.4th at 1321.)

2. Inconsistent Information and Missing Information on Some Time Keepers

There are also certain specific concerns the Court has regarding the evidence. Though Bowles states Ms. Tomp's billing rate is \$285/hour, the time records show services by "LMT" billed at \$310/hour, not \$285. (*See, e.g.*, time entries on 3/10/2020 - 3/13/2020.) (*Compare to* Bowles Decl. ¶ 27.) The \$310 per hour rate may be reasonable for Ms. Tomp, but the Court requires clarification from Bowles regarding the correct rate charged for her services, in case the \$310 rate in the time records was somehow incorrect, or if the \$285 hourly rate stated in the Bowles Declaration should be corrected as a misstatement.

There are time entries for several other time keepers not identified in the Bowles Declaration. (*See, e.g.*, time entries on 7/15/2020 and 4/30/2021 by DVL; time entries on 7/23/2020 and 11/11/2020 by JLP; time entries on 1/19/2021 and 2/1/2021 by "JCK" at \$310/hr.; time entries on 7/2/2021 and 7/6/2021 by "JMB" at \$335/hr.) (*Compare to* Bowles Decl. ¶¶ 25-27.) The Bowles Declaration does not identify the time keepers with these initials, explain their qualifications or professional role in the case, or provide evidence justifying the hourly billing rate for each person's services based on their experience and work. The Court requires this information to be included in the supplemental filing by Garaventa requested below.

3. Block Billing Entries, Redacted Content

Many of the time entries block out text regarding the substance of calls or emails between counsel and the client or the substance of legal research. The Court finds this understandable as an effort to protect attorney-client privileged or work product protected information. The Court views the reasonableness of the attorneys' fees requested not necessarily on a line-by-line item basis but on the

total hours expended, hourly rate, and total fees sought in light of the nature of the disputes involved and the services rendered. (*See Sweetwater Union High School Dist. v. Julian Union Elementary School Dist.* (2019) 36 Cal.App.5th 970, 994 [detailed billing records not required; declaration of counsel with evidence of reasonable hourly rate, number of hours spent, and the tasks performed sufficient basis on which Court can award attorneys' fees].)

The Court can evaluate the redacted time entries in the context of the events in the case and the other surrounding entries which may include details regarding pleadings prepared, appraisals received and analyzed, and hearings attended which provide sufficient connection to the compensable services. (*See, e.g.*, time entry on 7/3/2020 stating "Emails regarding Opposition to Motion regarding Appraisers," time entry on 7/20/2020 which time entry on 7/17/2020 supports that the "Dictate" entry relates to the work with the appraisers, and time entry on 2/2/2022 where "dictate letter to client regarding" is supported by prior entries in the block regarding a call with one of the appraisers (Laversin) and a review of that appraiser's report.)

Block billing does not preclude the Court from awarding attorneys' fees for all or a portion of the time included in the block entry if the Court can discern the services are within the scope of compensable work described above, and the time spent and rates charges for the services are reasonable. Many of the so-called "block billing" entries in fact include specific time per task breakdowns, or there is more than sufficient content in the block billing to assess the reasonableness of the fee charged for the tasks performed. (*See, e.g.*, time entries on 11/8/2024 and 11/25/2024; time entry on 10/7/2024 for "Review of appraisals; work on proposal to Court regarding handling."). The Court does not find that block billed time entries in Exhibit A preclude the Court from assessing the reasonable attorneys' fees to be awarded in this case.

E. Plaintiff's Evidence Regarding Costs as Expenses

Exhibit B reflects the costs Garaventa seeks according to the Bowles Declaration. The 53-page exhibit lists a total of over \$83,000 in costs, but the Bowles Declaration indicates Garaventa is seeking recovery of only a fraction of that amount, \$14,247.69. There is no breakdown of which costs listed in the 53-page exhibit are part of the \$14,247.69 in costs Garaventa seeks. Exhibit B does not highlight the expense entries comprising the \$14,247.69 in costs. The Court cannot determine how Garaventa arrived at the \$14,247.69 in costs requested. Garaventa must provide supplemental papers highlighting the expenses for which he seeks payment on the 53-page expense list and demonstrating those costs are reasonably related to the Corporations Code section 2000(c) appraisal process.

The Court also notes that there are expense "task codes" in Exhibit B whose meaning is not obvious, such as "ae," "br," "cf," "jf," and "op." For any category of expenses for which costs are included in the request for payment, the supplemental papers filed by Garaventa should include the meaning of the associated task code and the type of expense it covers.

F. Claim for 50% of Appraisal Costs

Bowles declares the total appraisal fees were \$43,500 based on Pine Hollow's financials. (Bowles Decl. ¶ 29.) Garaventa asks for 50% of that amount as part of his expenses. Azari submits no contrary evidence contesting the cost of the appraisals, but Azari argues that Pine Hollow paid for the appraisals, not Garaventa, so Garaventa cannot recover this expense.

The Court finds Azari's position more persuasive. It is apparently undisputed by the parties that Pine Hollow, a separate legal entity, paid for the appraisal fees. Garaventa could have objected and sought to have the shareholders themselves divide payment of the appraisal fees. Garaventa, as the "moving parties" under Corporations Code section 2000 did not expend those fees, and the Court does not find the language of the statute allows the Court to award 50% of the appraisal fee as an expense incurred by Garaventa as a result.

Garaventa has pending claims against Azari and nominally Pine Hollow for alleged mismanagement and financial improprieties in the conduct of Pine Hollow's affairs. Garaventa may have remedies to address the appraisal fees in the context of his other claims in the case, but under the circumstances, an expense award under Corporations Code section 2000(c) cannot include that sum.

Supplemental Filings and Meet and Confer

The Court requests that Garaventa file and serve his supplemental filing, including a supplemental Bowles Declaration, addressing the information identified in this tentative ruling by **February 2, 2026**. Azari may file a supplemental opposition to Garaventa's supplemental filing **by February 9, 2026**.

With the guidance provided by this tentative ruling, the Court also requests that the parties meet and confer to attempt to resolve their disputes over the amount of expenses that should be awarded to Garaventa under Corporations Code section 2000(c) prior to the continued hearing on the motion.

Additional Notes on the Bowles Declaration

The Court disregards arguments in the Bowles Declaration regarding the merits of the disputes between Plaintiff and Azari for several reasons, including that argument is not properly included in a declaration as it is not evidence, that the arguments lack foundation, are hearsay, or are outside counsel's personal knowledge. (See, e.g., Bowles Decl. ¶¶ 8, 9, 12, 22, 30.) Bowles' summary of events in the case provide a case history and facts supporting the expense request, and his participation in the case provides foundation for his personal knowledge of those events.

14. 9:00 AM CASE NUMBER: N25-2444
CASE NAME: PETITION OF: MAUREEN MCCOOEY
HEARING IN RE: PETITION FOR RELEASE OF MECHANICS LIEN
FILED BY: MCCOOEY, MAUREEN

TENTATIVE RULING:

Continued to February 26, 2026, 9:00 a.m., for proper service of the petition. Civil Code section 8486(b) requires that the Petition be "served in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requests[.]" although the service declaration of Brendan Totah states that the petition was served "return receipt requested," the attached receipt from the U.S. Postal Service shows only that the documents were sent by priority mail. **Petitioner also will need to serve notice of the new hearing date.**